

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE ALL NECESSARY DOCUMENTS RELATED TO THE TRANSFER, PURCHASE AND SALE OF A SPECIFIED PORTION OF THE PROPERTY LOCATED AT 1720 CLEVELAND AVENUE"

WHEREAS, on or about July 22, 1980, through the execution of a quitclaim deed, the Wyoming State Highway Commission (the "Commission") conveyed to the City of Cheyenne (the "City") title to 1720 Cleveland Avenue (the "Cleveland Avenue property"), presently being used by the City for Fire Station No. 3. The quitclaim deed is attached and incorporated herein as *Exhibit A*;

WHEREAS, the Commission conveyed the Cleveland Avenue property to the City subject to a deed restriction, which prohibited the City from conveying the property, without the express consent of the Commission and the Federal Highway Administration (the "FHA"), when such conveyance would cause the property to be used for something other than public purposes. (See *Exhibit A*, at p.2);

WHEREAS, the conveyance by the Commission also included a reversionary clause whereby if the City were to convey all or any part of the Cleveland Avenue property without the prior written approval of the Commission and the FHA, fee simple title to the property would immediately revert to the Commission and such conveyance would be null and void. (See *Exhibit A*, at p.2);

WHEREAS, as a result of the 2021 November election and through the use of the voluntary one percent (1%) specific purpose sales and use tax, voters in Laramie County approved the use of taxpayer funds for the relocation and replacement of three (3) fire stations, including Fire Station No. 3;

WHEREAS, US 30 BP, LLC, a Wyoming limited liability company, intends to purchase, and the City intends to convey, a specified portion of the Cleveland Avenue property in exchange for other property of value to the City. (See *Exhibit B*, 1720 Cleveland Avenue portion appraisal, p.20, attached and incorporated herein);

WHEREAS, on September 16, 2022, the City received an appraisal valuing the estimated market value of the specified portion of the Cleveland Avenue property, fee simple, at five hundred seventy thousand dollars (\$570,000.00) (See *Exhibit B*, at p.2);

WHEREAS, the FHA deferred to the legal successor of the Commission, the Transportation Commission of Wyoming, within the Wyoming Department of Transportation (collectively referred to as the "State of Wyoming"), on whether the necessary written approval should be provided to the City to authorize the conveyance and sale of the specified portion of the Cleveland Avenue property to US 30 BP, LLC, and the State of Wyoming has declined to issue its written approval;

WHEREAS, to accomplish the relocation and replacement of Fire Station No. 3, the City must have the authority to convey the specified portion of the Cleveland Avenue property regardless of whether its use will continue for public purposes;

WHEREAS, to effectuate the conveyance and sale of the specified portion of the Cleveland Avenue property to US 30 BP, LLC, the City intends to execute a quitclaim deed to the State of Wyoming conveying fee simple title to the specified portion of the Cleveland Avenue property;

WHEREAS, the City will then reacquire that specified portion of the Cleveland Avenue property by entering into a purchase and sale agreement with the State of Wyoming in the amount of five hundred seventy thousand dollars (\$570,000.00) utilizing the approved one percent (1%) specific purpose sales and use tax revenue; and

WHEREAS, upon completion of the purchase and sale agreement with the State of Wyoming, the City intends to enter into a subsequent purchase and sale agreement with US 30 BP, LLC, which agreement will include the specified portion of the Cleveland Avenue property, in exchange for property upon which the new Fire Station No. 3 will be located.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is authorized to execute all necessary documents related to the transfer, purchase, and sale of the specified portion of the property located at 1720 Cleveland Avenue as described in *Exhibit B*, p.20.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2022.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

RECORDED JUL 2 1 1964 AT 11:54 O'CLOCK A.M.
589009
Reception No. 1001 CLAIM DEED

Photographed TC
Indexed TC
Filed TC
Assessor MB

KNOW ALL MEN BY THESE PRESENTS:

That the WYOMING STATE HIGHWAY COMMISSION, Grantor, for and in consideration of Ten dollars (\$10.00) and other valuable considerations in hand paid, conveys and quitclaims to the CITY OF CHEYENNE, Grantee, its successors or assigns forever, all such right, title, interest or claim held by said Grantor to the following described real estate situate in the County of Laramie, State of Wyoming, to-wit:

All that portion of the W $\frac{1}{2}$ NE $\frac{1}{4}$ and the SE $\frac{1}{4}$ NE $\frac{1}{4}$ of Section 34, T. 14 N., R. 66 W. of the 6th P.M., Wyoming, being described by metes and bounds as follows:
Beginning at a point from which the southeast corner of the NW $\frac{1}{4}$ NE $\frac{1}{4}$ of said Section 34 bears S. 89° 44' 19" E. a distance of 40.00 feet;
thence N. 89° 44' 19" W. a distance of 169.98 feet;
thence S. 35° 32' 41" W. a distance of 134.76 feet;
thence S. 41° 07' 00" W. a distance of 121.34 feet to a Wyoming Highway Department right of way marker;
thence S. 44° 56' 07" W. a distance of 98.03 feet to a Wyoming Highway Department right of way marker;
thence N. 89° 35' 12" a distance of 46.50 feet;
thence S. 00° 12' 33" W. a distance of 35.00 feet to a Wyoming Highway Department right of way marker;
thence S. 55° 46' 25" W. a distance of 19.35 feet to a Wyoming Highway Department right of way marker;
thence S. 62° 43' 04" W. a distance of 130.66 feet to a Wyoming Highway Department right of way marker;
thence S. 53° 13' 18" W. a distance of 99.64 feet to a Wyoming Highway Department right of way marker;
thence N. 89° 42' 36" W. a distance of 328.47 feet;
thence N. 00° 19' 10" E. a distance of 5.90 feet to a Wyoming Highway Department right of way marker;
thence S. 89° 47' 59" W. a distance of 42.03 feet to a Wyoming Highway Department right of way marker;
thence S. 26° 09' 42" W. a distance of 209.12 feet to a Wyoming Highway Department right of way marker;
thence S. 22° 47' 32" W. a distance of 395.29 feet to a point on the north-south center line of said Section 34;
thence S. 00° 09' 46" E. along the said center line a distance of 295.15 feet, more or less, to a point on the north boundary line of 14th Street in the City of Cheyenne;
thence N. 89° 47' 38" W. along the extension of said north boundary a distance of 106.77 feet;
thence N. 03° 28' 42" E. a distance of 316.64 feet to a Wyoming Highway Department right of way marker;
thence N. 17° 05' 37" E. a distance of 346.65 feet to a Wyoming Highway Department right of way marker;
thence N. 12° 49' 31" E. a distance of 292.52 feet to a Wyoming Highway Department right of way marker;
thence N. 32° 14' 06" E. a distance of 217.75 feet to a Wyoming Highway Department right of way marker;
thence N. 77° 39' 22" E. a distance of 134.94 feet to a Wyoming Highway Department right of way marker;
thence N. 72° 47' 41" E. a distance of 392.95 feet to a Wyoming Highway Department right of way marker;
thence N. 57° 32' 05" E. a distance of 394.60 feet to a Wyoming Highway Department right of way marker;
thence S. 56° 46' 48" E. a distance of 216.70 feet to a Wyoming Highway Department right of way marker;
thence S. 33° 42' 12" E. a distance of 97.41 feet, more or less, to the point of beginning.

The above described parcel of land contains 439,535 square feet, more or less.

The Grantee, in consideration of the grant of this Deed, does hereby covenant and agree as a covenant running with the land for itself, its successors and assigns that (a) no person shall, on the grounds of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be otherwise subjected to discrimination with regard to any facility located wholly or in part on, over or under such lands hereby conveyed, (b) that the Grantee shall use said land in compliance with all requirements imposed by or pursuant to Title 49, Code of Federal Regulations, Department of Transportation, Subtitle A, Office of the Secretary, Part 21, Nondiscrimination in Federally-assisted programs of the Department of Transportation, effectuation of Title VI of the Civil Rights Act of 1964, and as said Regulations may be amended. In the event of breach of any of the above-mentioned nondiscrimination conditions, the Grantor shall have the right to re-enter said lands and facilities on said land, and the above-described land and facilities shall thereon revert to and vest in and become the absolute property of the Grantor and its assigns, and such interest existed prior to this instrument.

BOOK 1143

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EXHIBIT

A

As an essential part of this transaction the grantee or its successors and assigns will not be allowed access from, to and between the above tract of land and the following streets or highways. The Cheyenne Outer Belt Road, Project M-4000(1) and Lincoln Way, Project M-4014(2), except that one access point is allowed for the entry of emergency rescue and fire fighting vehicles to Lincolnway from Lot 1 of Wynn Addition as proposed on a plat dated February 1, 1980 prepared by B.R.W. Noblitt.

This Parcel of Land is hereby conveyed, subject to the following stipulations and reverter in favor of the Grantor hereto:

- (1) All of the Parcel of Land hereby conveyed is to be expressly used by the Grantee for Public Purposes ONLY and said Parcel cannot and is not under any circumstances to be conveyed, sold or in any wise disposed of without the express prior written consent and approval of The State Highway Commission of the State of Wyoming and The Federal Highway Administration,
- (2) In the event that the Grantee hereto, or its successors and assigns, does convey or shall attempt to convey all or any part of the Parcel of Land herein described, without the prior written approval of The Highway Commission of the State of Wyoming and The Federal Highway Administration, the fee simple title to all of the Parcel of Land hereby conveyed, will immediately revert to The Highway Commission of the State of Wyoming, its successors and assigns, and notice to the Public is hereby given, that any such conveyances of all or part of the herein described Parcel of Land by Grantee, its successors and assigns, without the prior written consent and approval from The Highway Commission of the State of Wyoming and The Federal Highway Administration will be null and void,
- (3) The Grantee, The City of Cheyenne, Wyoming, hereto, by the acceptance of this Deed, does hereby acknowledge and agree to, for itself and all of its successors and assigns, all of the above stipulations and reverter clause in favor of the Grantor of this Deed.

RESERVING to the Grantor an easement for power transmission lines from available power sources, to traffic control devices at the intersection of Cleveland Avenue with U.S. 30 (Lincolnway).

IN WITNESS WHEREOF, the Grantor has caused these presents to be signed and sealed this 22 day of July, 1980, by its duly authorized and



Secretary

(SEAL)

WYOMING STATE HIGHWAY COMMISSION

By Lena Menghini
Superintendent & Chief Engineer

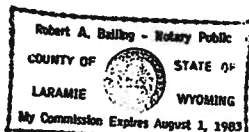
ACKNOWLEDGEMENT

THE STATE OF Wyoming
COUNTY OF Laramie ss.

The foregoing instrument was acknowledged before me this 22nd day of July, 1980, by Neil C. Unice and Lena Menghini

Witness my hand and official seal

My commission expires:



Photographed ✓
Indexed _____
Posted _____
Assessor _____

Robert A. Balling
NOTARY PUBLIC

Please Return to
City Clerk's office
2101 O'Neil Ave
Room 101

BOOK 1143

58909

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The insight you need. The independence you trust.

Land As If Vacant

1720 Cleveland Avenue
Cheyenne, Wyoming 82001

BBG File #0122021690

Prepared For

City of Cheyenne
Attn: John Kopper
Fire Chief
Cheyenne Fire & Rescue
2101 O'Neil Ave.
Cheyenne, WY 82001

Report Date

September 16, 2022

Prepared By

BBG, Inc.
5395 West 25th Avenue
Denver, CO 80214

Client Manager: Eric Hoening, MAI
erich@bbgres.com





September 16, 2022

City of Cheyenne
Attn: John Kopper
Fire Chief
Cheyenne Fire & Rescue
2101 O'Neil Ave.
Cheyenne, WY 82001

Re: Appraisal of Real Property
Land as if Vacant
1720 Cleveland Avenue
Cheyenne, Wyoming 82001

Mr. Kopper:

In accordance with your authorization (per the engagement letter found in the Addenda of this report), we have prepared an Appraisal of the above-referenced property.

This appraisal report was prepared to conform with the requirements of the Uniform Standards of Professional Appraisal Practice (USPAP). This report has been written in accordance with the Code of Ethics and the Standards of Professional Practice of the Appraisal Institute.

Note: Our opinion of market value is subject to the following Extraordinary Assumptions and/or Hypothetical Conditions:

EXTRAORDINARY ASSUMPTION(S) AND HYPOTHETICAL CONDITION(S)

The values presented within this appraisal report are subject to the extraordinary assumptions and hypothetical conditions listed below. Pursuant to the requirement within Uniform Standards of Professional Appraisal Practice Standards, it is stated here that the use of any extraordinary assumptions might have affected the assignment results.

Extraordinary Assumption(s) This appraisal employs no extraordinary assumptions.

Hypothetical Condition(s) This appraisal employs the hypothetical condition that the land is vacant and available for development. The scope of work is to value the land only; it does not include site improvements or buildings improvements. The hypothetical condition affected the estimated value.

**Estimated Market Value, Fee Simple, As If Vacant Land
1720 Cleveland Avenue, Cheyenne, WY
2.18 Acres as of September 13, 2022**

\$ 570,000

Based on our investigation and the analysis undertaken, we have concluded the following value opinion.

This letter must remain attached to the report, which should be transmitted in its entirety, in order for the value opinion set forth to be considered valid.

Our firm appreciates the opportunity to have performed this appraisal assignment on your behalf. If we may be of further service, please contact us.

Sincerely,

BBG, Inc.

A handwritten signature in blue ink that reads "Daniel Holbrook". The signature is written in a cursive, flowing style.

Daniel Holbrook
Senior Appraiser
Wyoming State Certified General Real Estate Appraiser #1447
dholbrook@bbgres.com

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SCOPE OF WORK

Identify the Appraisal Problem

➤ Client and Intended Users

I was engaged to perform this assignment by the City of Cheyenne, which is an intended user. The only other intended user is the Wyoming Department of Transportation.

➤ Intended Use

This appraisal report will be used by the client for internal valuation and to aid in decisions regarding the disposition of the subject property. Any other use of this appraisal report is not authorized.

➤ Effective Date of the Opinions and Conclusions

The subject property is being appraised as of September 13, 2022. The report was prepared during September 2022.

➤ Prior Services Performed

I appraised the subject property with a different scope of work for the same client in January 2022.

➤ Type and Definition of Value

The assignment is to estimate the market value of the fee simple estate as if vacant.

Market Value Definition

Market value means the most probable price which a property should bring in a competitive and open market under all condition's requisite to a fair sale, the buyer and seller each acting prudently and knowledgeably, and assuming the price is not affected by undue stimulus. Implicit in this definition is the consummation of a sale as of a specified date and the passing of title from seller to buyer under conditions whereby:

1. buyer and seller are typically motivated;
2. both parties are well informed or well advised and acting in what they consider their own best interests;
3. a reasonable time is allowed for exposure in the open market;
4. payment is made in terms of cash in U.S. dollars or in terms of financial arrangements comparable thereto; and
5. the price represents the normal consideration for the property sold unaffected by special or creative financing or sales concessions granted by anyone associated with the sale.

This definition is from regulations published by federal regulatory agencies pursuant to Title XI of the Financial Institutions Reform, Recovery, and Enforcement Act (FIRREA) of 1989 between July 5, 1990, and August 24, 1990, by the Federal Reserve System (FRS), National Credit Union Administration (NCUA), Federal Deposit Insurance Corporation (FDIC), the Office of Thrift Supervision (OTS), and the Office of Comptroller of the Currency (OCC). This definition is also referenced in regulations jointly published by the OCC, OTS, FRS, and FDIC on June 7, 1994, and in the *Interagency Appraisal and Evaluation Guidelines*, dated October 27, 1994.

Fee Simple Estate

Absolute ownership unencumbered by any other interest or estate, subject only to the limitations imposed by the governmental powers of taxation, eminent domain, police power, and escheat. Source: Appraisal Institute, *The Dictionary of Real Estate Appraisal*, 5th ed. (Chicago: Appraisal Institute, 2010).

Scope of Work

➤ Degree to which the property is inspected:

The lots and the area have been viewed by the appraiser several times. Per prior agreement with the client, the appraiser did not make another inspection on the date of value. We relied on the prior inspection and provided photographs, maps, and public information, in addition to the familiarity with the area overall. With regard to the site, particular attention was given to the availability of utilities, presence of onsite and offsite improvements, specific location, size and configuration, and present or potential land use restrictions. The inspection of the site and improvements is for the purposes of estimating the market value of the property.

➤ Extent of research into physical or economic factors that could affect the property:

The area, community, and neighborhood were studied, and trends which could affect the subject property have been considered in the valuation of the subject.

➤ Type and Extent of Data Research:

I have searched the market for comparable sales and comparable rentals if applicable. Emphasis has been placed on finding comparables that are recent and are similar in type, use, location, age, quality, condition, appeal, etc. If sufficient comparables to form an opinion are not available, then the search must be widened to include sales that are not as recent or are not similar in some respects. In this case the appraiser has attempted to bracket the subject property with comparables that are inferior and comparables that are superior, to establish a clear range of value. Market data appropriate to the valuation of this property were collected and analyzed in a variety of ways. Comparable sales have been located using public records and by interviewing real estate participants familiar with the area and property type. Once located, the particulars of each sale were verified with parties involved in the transaction (typically the buyer, seller, broker, appraiser, or lender). Wyoming is a nondisclosure state so there is no public record of sale prices. The market data in this report is deemed reliable but is not guaranteed.

➤ Type and Extent of Analyses Applied:

The sales comparison approach is the only meaningful and reliable approach to estimate the value of the land as vacant. It is the only approach developed.

STANDARD ASSUMPTIONS AND LIMITING CONDITIONS

This appraisal report has been made with the following general assumptions:

- 1) Notwithstanding that Appraiser may comment on, analyze or assume certain conditions in the appraisal, BBG, Inc. shall have no monetary liability or responsibility for alleged claims or damages pertaining to: (a) title defects, liens or encumbrances affecting the property; (b) the property's compliance with local, state or federal zoning, planning, building, disability access and environmental laws, regulations and standards; (c) building permits and planning approvals for improvements on the property; (d) structural or mechanical soundness or safety; (e) contamination, mold, pollution, storage tanks, animal infestations or other hazardous conditions affecting the property; and (f) other conditions and matters for which licensed real estate appraisers are not customarily deemed to have professional expertise. Accordingly:
 - a) The Appraiser has not conducted any engineering or architectural surveys in connection with this appraisal assignment. Information reported pertaining to dimensions, sizes, and areas is either based on measurements taken by the Appraiser or the Appraiser's staff or was obtained or taken from referenced sources and is considered reliable. The Appraiser and BBG, Inc. shall not be monetarily liable or responsible for or assume the costs of preparation or arrangement of geotechnical engineering, architectural, or other types of studies, surveys, or inspections that require the expertise of a qualified professional.
 - b) Unless otherwise stated in the report, only the real property is considered, so no consideration is given to the value of personal property or equipment located on the premises or the costs of moving or relocating such personal property or equipment. Further, unless otherwise stated, it is assumed that there are no subsurface oil, gas or other mineral deposits or subsurface rights of value involved in this appraisal, whether they are gas, liquid, or solid. Further, unless otherwise stated, it is assumed that there are no rights associated with extraction or exploration of such elements considered. Unless otherwise stated it is also assumed that there are no air or development rights of value that may be transferred.
 - c) Any legal description or plats reported in the appraisal are assumed to be accurate. Any sketches, surveys, plats, photographs, drawings or other exhibits are included only to assist the intended user to better understand and visualize the subject property, the environs, and the competitive data. BBG, Inc. has made no survey of the property and assumes no monetary liability or responsibility in connection with such matters.
 - d) Title is assumed to be good and marketable, and in fee simple, unless otherwise stated in the report. The property is considered to be free and clear of existing liens, easements, restrictions, and encumbrances, except as stated. Further, BBG, Inc. assumes there are no private deed restrictions affecting the property which would limit the use of the subject property in any way.
 - e) The appraisal report is based on the premise that there is full compliance with all applicable federal, state, and local environmental regulations and laws unless otherwise stated in the appraisal report; additionally, that all applicable zoning, building, and use regulations and restrictions of all types have been complied with unless otherwise stated in the appraisal report. Further, it is assumed that all required licenses, consents, permits, or other legislative or administrative authority, local, state, federal and/or private entity or organization have been or can be obtained or renewed for any use considered in the value opinion. Moreover, unless otherwise stated herein, it is assumed that there are no encroachments or violations of any zoning or other regulations affecting the subject property, that the utilization of the

land and improvements is within the boundaries or property lines of the property described, and that there are no trespasses or encroachments.

- f) The American Disabilities Act (ADA) became effective January 26, 1992. The Appraiser has not made a specific compliance survey or analysis of the property to determine whether or not it is in conformity with the various detailed requirements of ADA. It is possible that a compliance survey of the property and a detailed analysis of the requirements of the ADA would reveal that the property is not in compliance with one or more of the requirements of the Act. If so, this fact could have a negative impact upon the value of the property. Since the Appraiser has no direct evidence relating to this issue, possible noncompliance with the requirements of ADA was not considered in estimating the value of the property.
- g) No monetary liability or responsibility is assumed for conformity to specific governmental requirements, such as fire, building, safety, earthquake, or occupancy codes, except where specific professional or governmental inspections have been completed and reported in the appraisal report.
- h) It is assumed the subject property is not adversely affected by the potential of floods; unless otherwise stated herein. Further, it is assumed all water and sewer facilities (existing and proposed) are or will be in good working order and are or will be of sufficient size to adequately serve any proposed buildings.
- i) Unless otherwise stated within the appraisal report, the depiction of the physical condition of the improvements described therein is based on visual inspection. No monetary liability or responsibility is assumed for (a) the soundness of structural members since no engineering tests were conducted; (b) the condition of mechanical equipment, plumbing, or electrical components, as complete tests were not made; and (c) hidden, unapparent or masked property conditions or characteristics that were not clearly apparent during the Appraiser's inspection.
- j) If building improvements are present on the site, it is assumed that no significant evidence of termite damage or infestation was observed during physical inspection, unless so stated in the appraisal report. Further, unless so stated in the appraisal report, no termite inspection report was available. No monetary liability or responsibility is assumed for hidden damages or infestation.
- k) Unless subsoil opinions based upon engineering core borings were furnished, it is assumed there are no subsoil defects present, which would impair development of the land to its maximum permitted use or would render it more or less valuable. No monetary liability or responsibility is assumed for such conditions or for engineering which may be required to discover them.
- l) BBG, Inc., excepting employees of BBG Assessment, Inc., and the appraiser(s) are not experts in determining the presence or absence of hazardous substances toxic materials, wastes, pollutants or contaminants (including, but not limited to, asbestos, PCB, UFFI, or other raw materials or chemicals) used in construction or otherwise present on the property. BBG, Inc. and the appraiser(s) assume no monetary liability or responsibility for the studies or analyses which would be required to determine the presence or absence of such substances or for loss as a result of the presence of such substances. The Client is free to retain an expert on such matters in this field; however, Client retains such expert at Client's own discretion, and any costs and/or expenses associated with such retention are the responsibility of Client.
- m) BBG, Inc. is not an expert in determining the habitat for protected or endangered species, including, but not limited to, animal or plant life (such as bald eagles, gophers, tortoises, etc.)

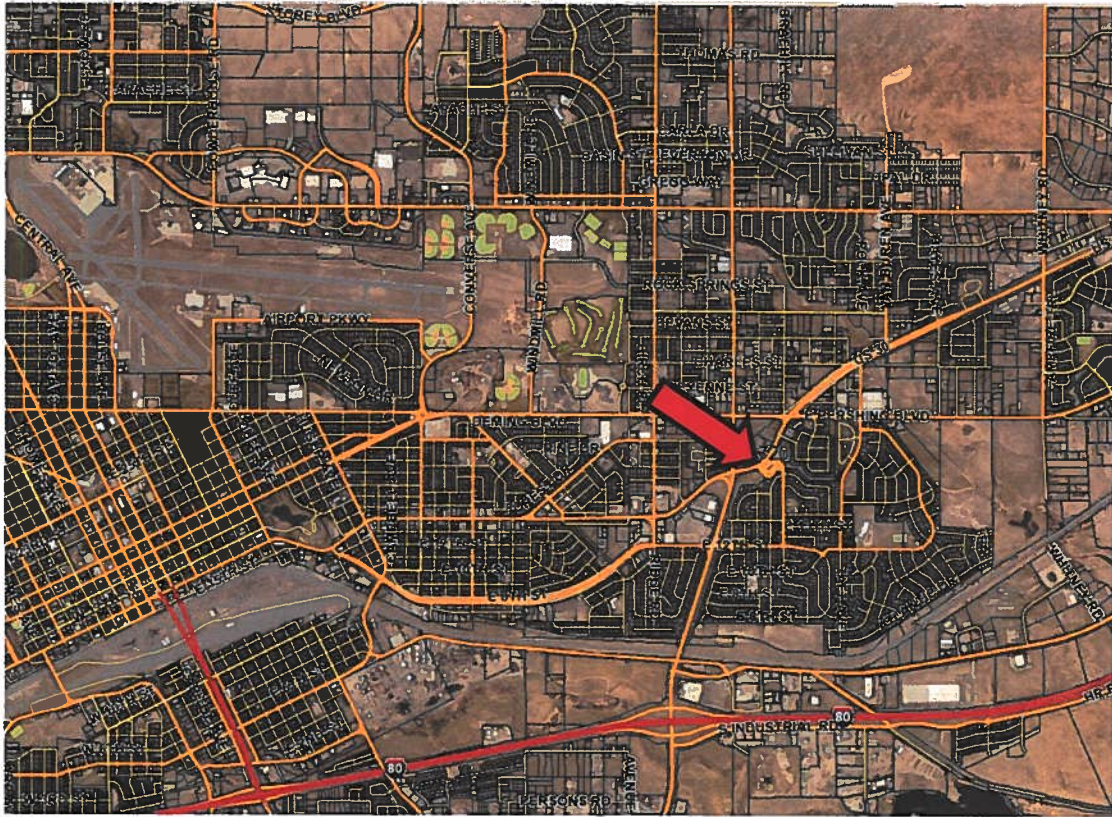
that may be present on the property. BBG, Inc. assumes no monetary liability or responsibility for the studies or analyses which would be required to determine the presence or absence of such species or for loss as a result of the presence of such species. The Appraiser hereby reserves the right to alter, amend, revise, or rescind any of the value opinions contained within the appraisal report based upon any subsequent endangered species impact studies, research, and investigation that may be provided. However, it is assumed that no environmental impact studies were either requested or made in conjunction with this analysis, unless otherwise stated within the appraisal report.

- 2) If the Client instructions to the Appraiser were to inspect only the exterior of the improvements in the appraisal process, the physical attributes of the property were observed from the street(s) as of the inspection date of the appraisal. Physical characteristics of the property were obtained from tax assessment records, available plans, if any, descriptive information, and interviewing the client and other knowledgeable persons. It is assumed the interior of the subject property is consistent with the exterior conditions as observed and that other information relied upon is accurate.
- 3) If provided, the estimated insurable value is included at the request of the Client and has not been performed by a qualified insurance agent or risk management underwriter. This cost estimate should not be solely relied upon for insurable value purposes. The Appraiser is not familiar with the definition of insurable value from the insurance provider, the local governmental underwriting regulations, or the types of insurance coverage available. These factors can impact cost estimates and are beyond the scope of the intended use of this appraisal. The Appraiser is not a cost expert in cost estimating for insurance purposes.
- 4) The dollar amount of any value opinion herein rendered is based upon the purchasing power and price of the United States Dollar as of the effective date of value. This appraisal is based on market conditions existing as of the date of this appraisal.
- 5) The value opinions reported herein apply to the entire property. Any proration or division of the total into fractional interests will invalidate the value opinions, unless such proration or division of interests is set forth in the report. Any division of the land and improvement values stated herein is applicable only under the program of utilization shown. These separate valuations are invalidated by any other application.
- 6) Any projections of income and expenses, including the reversion at time of resale, are not predictions of the future. Rather, they are BBG, Inc.'s best estimate of current market thinking of what future trends will be. No warranty or representation is made that such projections will materialize. The real estate market is constantly fluctuating and changing. It is not the task of an appraiser to estimate the conditions of a future real estate market, but rather to reflect what the investment community envisions for the future in terms of expectations of growth in rental rates, expenses, and supply and demand. The forecasts, projections, or operating estimates contained herein are based on current market conditions, anticipated short-term supply and demand factors, and a continued stable economy. These forecasts are, therefore, subject to changes with future conditions.
- 7) The Appraiser assumes no monetary liability or responsibility for any changes in economic or physical conditions which occur following the effective date of value within this report that would influence or potentially affect the analyses, opinions, or conclusions in the report. Any subsequent changes are beyond the scope of the report.
- 8) Any proposed or incomplete improvements included in the appraisal report are assumed to be satisfactorily completed in a workmanlike manner or will be thus completed within a reasonable length of time according to plans and specifications submitted.

- 9) If the appraisal report has been prepared in a so-called "public non-disclosure" state, real estate sales prices and other data, such as rents, prices, and financing, are not a matter of public record. If this is such a "non-disclosure" state, although extensive effort has been expended to verify pertinent data with buyers, sellers, brokers, lenders, lessors, lessees, and other sources considered reliable, it has not always been possible to independently verify all significant facts. In these instances, the Appraiser may have relied on verification obtained and reported by appraisers outside of our office. Also, as necessary, assumptions and adjustments have been made based on comparisons and analyses using data in the report and on interviews with market participants. The information furnished by others is believed to be reliable, but no warranty is given for its accuracy.
- 10) Although the Appraiser has made, insofar as is practical, every effort to verify as factual and true all information and data set forth in this report, no responsibility is assumed for the accuracy of any information furnished the Appraiser either by the Client or others. If for any reason, future investigations should prove any data to be in substantial variance with that presented in this report, the Appraiser reserves the right to alter or change any or all analyses, opinions, or conclusions and/or opinions of value.
- 11) The right is reserved by the Appraiser to make adjustments to the analyses, opinions, and conclusions set forth in the appraisal report as may be required by consideration of additional or more reliable data that may become available. No change of this report shall be made by anyone other than the Appraiser. The Appraiser shall have no monetary liability or responsibility for any unauthorized change(s) to the report.
- 12) The submission of the appraisal report constitutes completion of the services authorized and agreed upon. Such appraisal report is submitted on the condition the Client will provide reasonable notice and customary compensation, including expert witness fees, relating to any subsequent required attendance at conferences, depositions, or judicial or administrative proceedings. In the event the Appraiser is subpoenaed for either an appearance or a request to produce documents, a best effort will be made to notify the Client immediately. The Client has the sole responsibility for obtaining a protective order, providing legal instruction not to appear with the appraisal report and related work files, and will answer all questions pertaining to the assignment, the preparation of the report, and the reasoning used to formulate the opinion of value. Unless paid in whole or in part by the party issuing the subpoena or by another party of interest in the matter, the Client is responsible for all unpaid fees resulting from the appearance or production of documents regardless of who orders the work.
- 13) Client shall not disseminate, distribute, make available or otherwise provide any Appraisal Report prepared hereunder to any third party (including without limitation, incorporating or referencing the Appraisal Report, in whole or in part, in any offering or other material intended for review by other parties) except to (a) any third party expressly acknowledged in a signed writing by Appraiser as an "Intended User" of the Appraisal Report provided that either Appraiser has received an acceptable release from such third party with respect to such Appraisal Report or Client provides acceptable indemnity protections to Appraiser against any claims resulting from the distribution of the Appraisal Report to such third party, (b) any third party service provider (including rating agencies and auditors) using the Appraisal Report in the course of providing services for the sole benefit of an Intended User, or (c) as required by statute, government regulation, legal process, or judicial decree. In the event Appraiser consents, in writing, to Client incorporating or referencing the Appraisal Report in any offering or other materials intended for review by other parties, Client shall not distribute, file, or otherwise make such materials available to any such parties unless and until Client has provided Appraiser with complete copies of such materials and Appraiser has

approved all such materials in writing. Client shall not modify any such materials once approved by Appraiser. In the absence of satisfying the conditions of this paragraph with respect to a party who is not designated as an Intended User, the receipt of an Appraisal Report by such party shall not confer any right upon such party to use or rely upon such report, and Appraiser shall have no liability for such unauthorized use or reliance upon such report. In the event Client breaches the provisions of this paragraph, Client shall indemnify, defend and hold Appraiser, and its affiliates and their officers, directors, employees, contractors, agents and other representatives (Appraiser and each of the foregoing an "Indemnified Party" and collectively the "Indemnified Parties"), fully harmless from and against all losses, liabilities, damages and expenses (collectively, "Damages") claimed against, sustained or incurred by any Indemnified Party arising out of or in connection with such breach, regardless of any negligence on the part of any Indemnified Party in preparing the Appraisal Report.

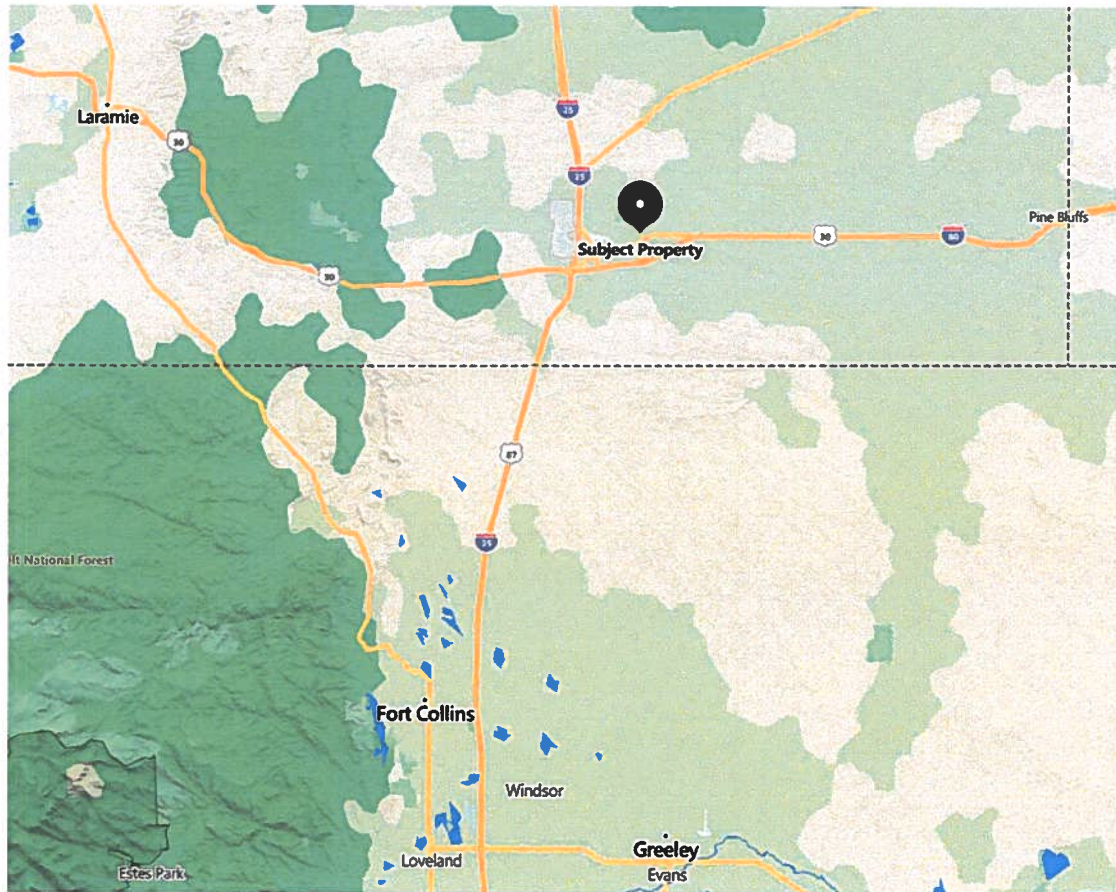
CITY MAP



REGIONAL OVERVIEW

The short- and long-term value of real estate is influenced by a variety of factors and forces that interact within a given region. Regional analysis serves to identify those forces that affect property value, and the role they play within the region. The four primary forces that influence real property value include environmental characteristics, governmental forces, social factors, and economic trends. These forces determine the supply and demand for real property, which, in turn, affect market value.

Regional Map



Economic & Demographic Profile

The following profile of the Cheyenne MSA was provided by Moody's Analytics, a leading provider of economic, financial, and industry information.

ECONOMIC DRIVERS



EMPLOYMENT GROWTH-RANK

2021/2021
342
5th quintile

2021/2020
374
3th quintile

Best = 1, Worst = 400

RELATIVE COSTS

MINING
102%

BUSINESS
98%

US = 100%

VITALITY

RELATIVE
-0.37
Rank: 315

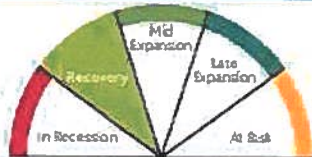
Best = 1, Worst = 479

QUALITY

OF LIFE
65

Best = 1, Worst = 479

BUSINESS CYCLE STATUS



STRENGTHS & WEAKNESSES

STRENGTHS

- Low business costs relative to the nation's
- Stable military presence
- High quality of life

WEAKNESSES

- Few growth drivers apart from energy and defense
- Economic health closely tied to state's energy boom-bust cycle
- Weak population growth and below average educational attainment

FORECAST RISKS

SHORT TERM



LONG TERM



COVID-19
EXPOSURE
MARCH 2022

162

3rd quintile

Min = 1
Max = 400

UPSIDE

- Remote work opportunities allow CHE to leverage its affordability advantage and draw high-wage workers from Colorado
- Heightened travel demand boosts domestic tourism and spending more than expected
- Elevated energy prices persist, increasing mining production and freight demand

DOWNSIDE

- Shortfalls in the local and state budget cost public sector jobs

MOODY'S RATING

NR

COUNTY
AS OF SEP 13, 2010

Recent Performance. Cheyenne's economy has fully recovered despite slower-than-average growth in 2021. Logistics and retail made solid gains while healthcare and the outside public sector failed to bounce back. State government payrolls have underperformed the state and nation and now sit at a two-decade low. CHE's unemployment rate dipped below its pre-pandemic low, although a recent drop-off in the labor force is primarily responsible. House price appreciation has been strong compared with the state but is trailing the nation. Housing supply is not an issue; permits are at a 15-year high.

Defense. CHE's outside military presence will remain a stable source of jobs. The metro area is home to F.E. Warren Air Force Base and the U.S. Army National Guard. Together, the two military branches are equivalent to 8% of non-farm payrolls in CHE, which is nearly four times the state average and eight times the national average. The base is of strategic importance to the Pentagon. It was chosen to be the home of the Ground Based Strategic Deterrent program, which oversees updates to the nation's intercontinental ballistic missile systems. As the program is developed and federal and private contractors pour in, downstream consumer industries will be given a boost and construction payrolls will benefit from additional facility needs.

The military conflict between Russia and Ukraine lends some temporary upside risk to the base. While still uncertain, an enduring conflict may lead the U.S. to deploy additional resources to allies in support of bolstering defenses. Given F.E. Warren's importance to national security, the heightened risk posed by the increased tensions in Eastern Europe could lift on-base spending.

Logistics. CHE is a minor player in mining, but abnormally high energy prices will jolt production in the state and boost its profile as a regional hub for energy freight. Logistics employment is already making gains but more slowly than nationally. Higher input prices have raised freight costs, but heightened demand will allow shippers to pass cost increases along to consumers. Payrolls will leap forward near term, but growth will grind to a halt after the dust of supply shocks settles and demand tapers. Longer term, energy shipping will dwindle with fossil fuel demand as transitions to cleaner energy sources are made nationwide.

Demographics. CHE's population will face strong headwinds and struggle to keep pace with the state and nation. The metro area will underperform regionally in terms of population growth over the next decade, largely due to a less-than-favorable industry mix. Most high-paying jobs are either in the public sector or logistics, which is reliant on the highly volatile energy sector. Low educational attainment has prevented stronger investment from firms in other high-value industries. As a result, the working-age population will decline, and income growth will lag the state and nation in the long run.

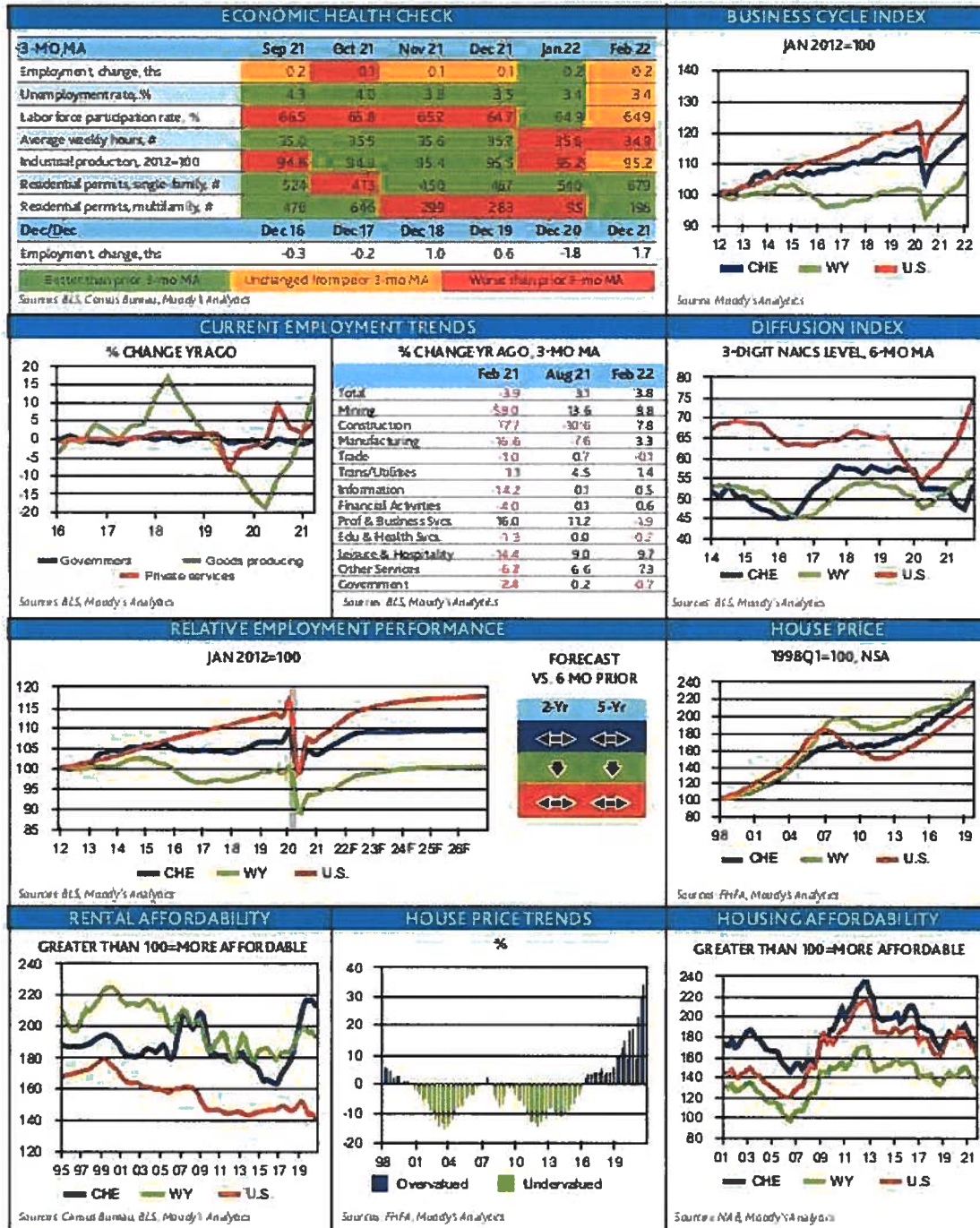
There is some hope for a reversal of lackluster population trends as remote work arrangements solidify. Since the pandemic, CHE has attracted in-migrants in search of lower living costs from metro areas across the Colorado border like Denver and Boulder based on data from Equilar. If this trend continues, even modest in-migration will provide a boost to local consumer industries.

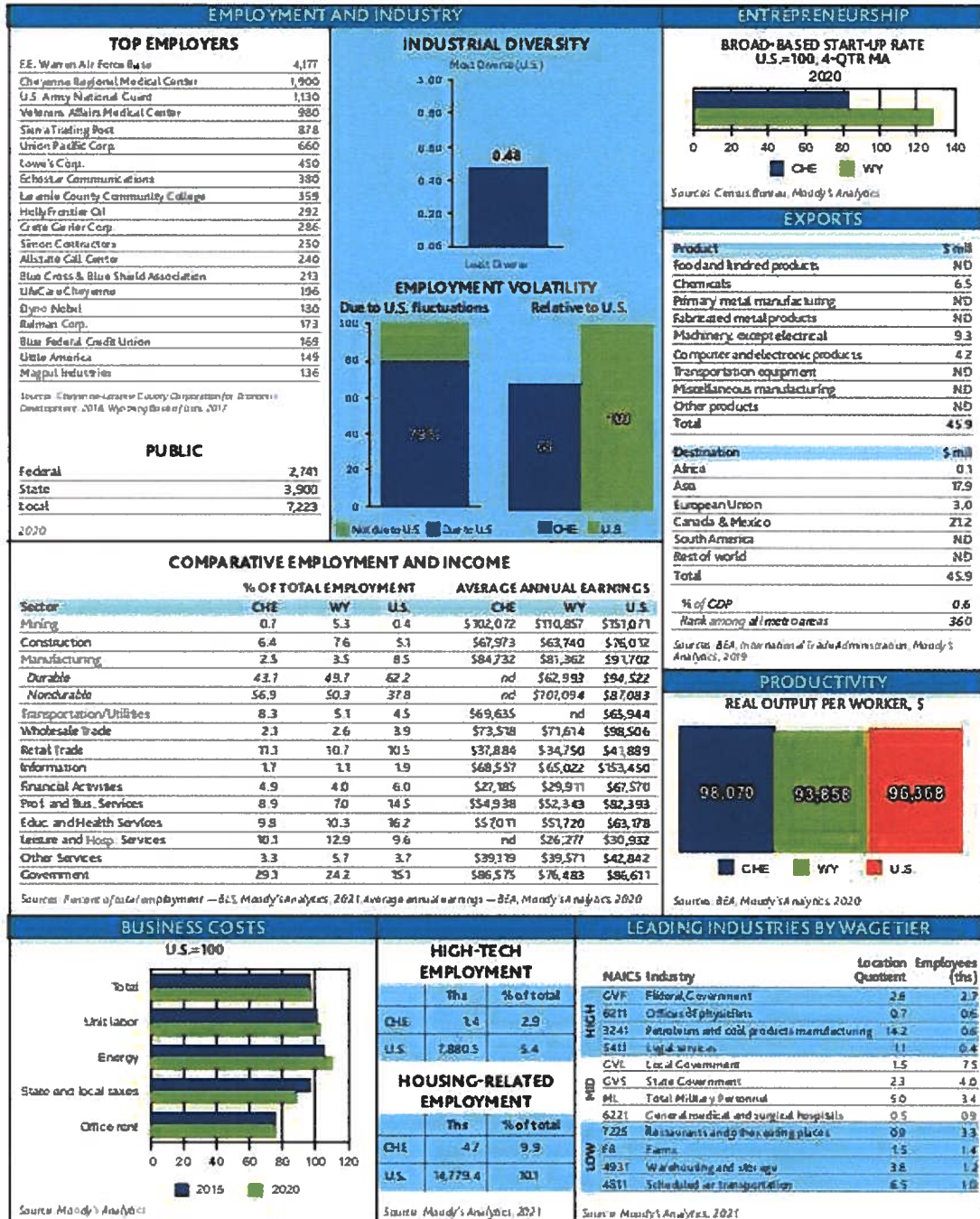
Cheyenne's economy will underperform the West near term. High energy prices will lift logistics payrolls but not quite as much as regionally. The military, however, will remain a stable presence, benefiting consumer industries. In the long run, lackluster demographics and an overreliance on fossil fuels will make CHE an underperformer.

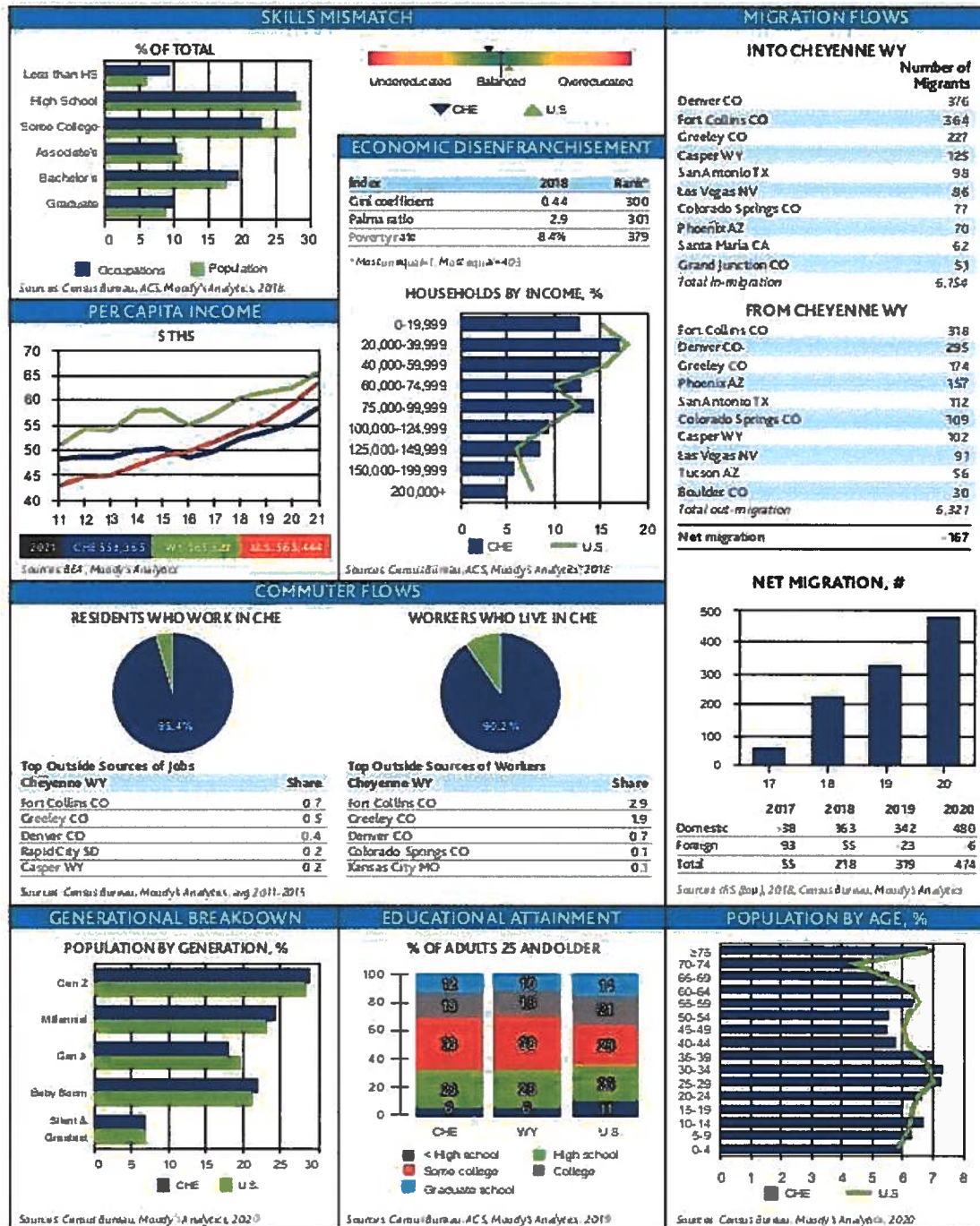
Justin Begley
March 2022

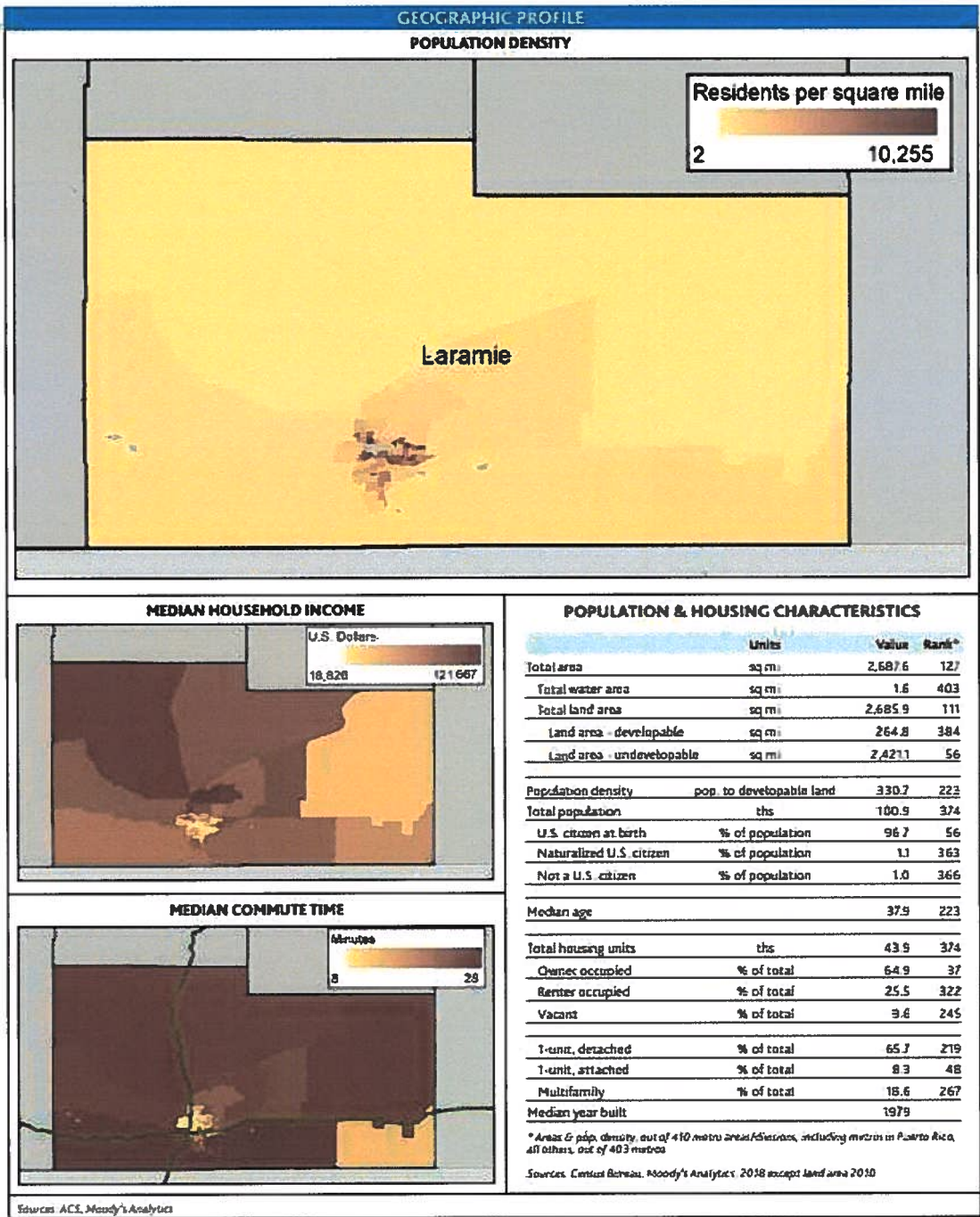
T. 856.275.3266
help@economy.com

2016	2017	2018	2019	2020	2021	INDICATORS	2022	2023	2024	2025	2026	2027
57	63	66	72	68	65	Gross metro product (C12 \$ bil)	67	67	68	69	69	70
10.5	6.7	8.4	8.8	4.3	5.6	% change	3.6	0.5	1.2	0.8	0.9	0.7
46.7	46.6	46.9	47.7	46.3	47.0	Total employment (th)	48.3	48.7	48.8	48.9	48.9	48.9
1.7	0.7	0.6	7.8	2.8	1.5	% change	3.1	0.4	0.2	0.1	0.0	0.0
4.1	3.8	3.9	3.5	5.1	4.3	Unemployment rate (%)	3.3	3.2	3.2	3.3	3.4	3.5
25	3.3	5.8	3.3	3.7	6.2	Personal income growth (%)	4.4	3.9	3.9	3.2	3.1	3.0
61.3	63.0	65.9	70.6	70.5	70.2	Median household income (\$ th)	73.9	76.3	78.8	81.2	83.6	86.1
97.9	98.4	98.9	99.5	99.5	99.5	Population (th)	99.9	100.1	100.2	100.3	100.4	100.4
0.9	0.9	0.5	0.6	0.0	0.2	% change	0.2	0.2	0.1	0.1	0.1	0.1
0.4	-0.0	0.3	0.2	-0.4	-0.1	Net migration (th)	-0.2	-0.1	-0.2	-0.2	-0.2	-0.2
433	389	391	386	438	503	Single-family permits (#)	1,059	1,135	982	782	637	526
43	384	148	46	112	244	Multifamily permits (#)	213	203	194	171	161	155
222.2	232.9	245.4	260.8	277.7	312.6	FHA house price (1995Q1=100)	350.2	359.1	359.9	360.6	359.9	357.8







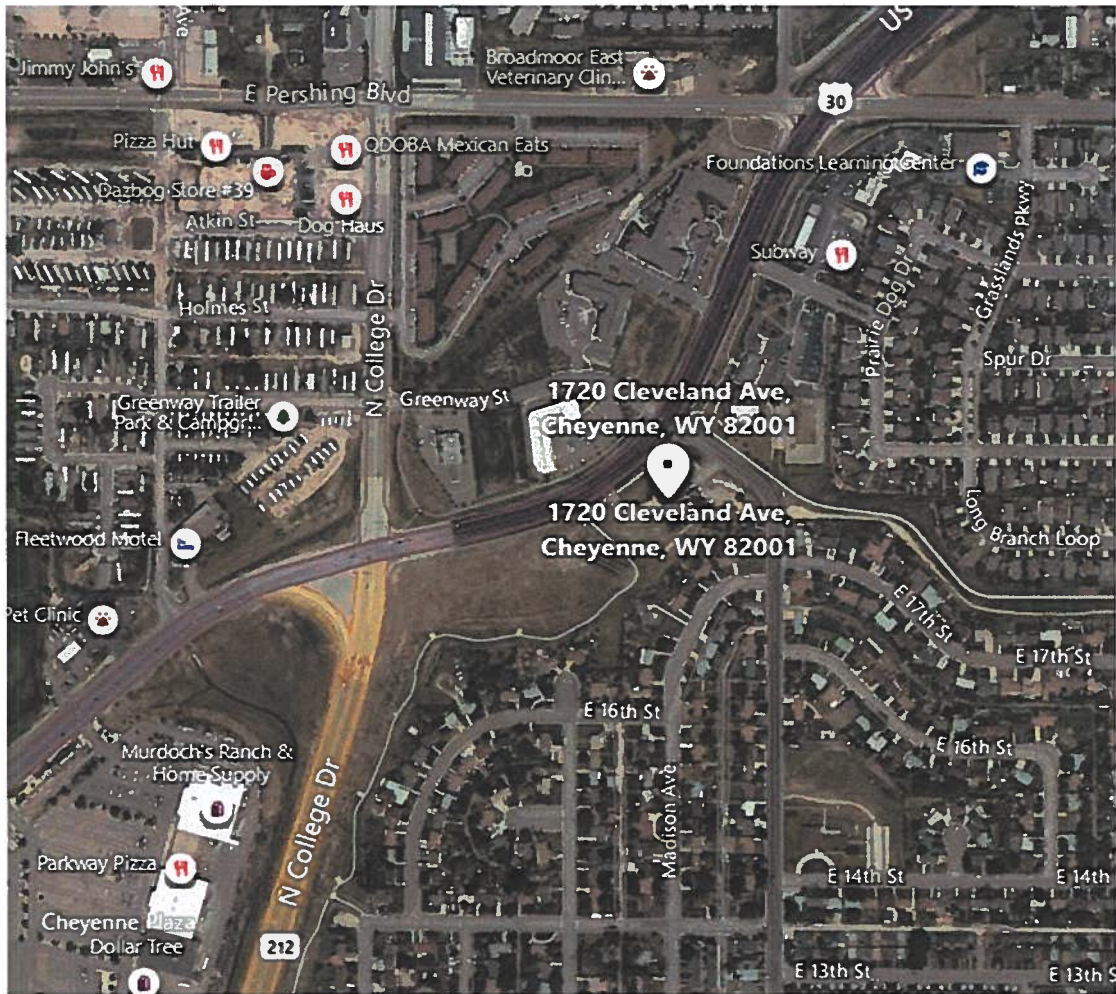


MARKET AREA OVERVIEW

The subject is located in East Cheyenne at the corner of E. Lincolnway and Cleveland Ave / Greenway St. Across the street to the north is Meridian Trust FCU, Outlaw liquors and Pour Decisions Bar & Grill. Across the street to the west is Fitness One and just north of that is the new Dollar General Store and Whispering Chase Assisted Senior Living.

In general, the area to the east and south of the subject is residential in nature while the area along E. Lincolnway is commercial in nature.

Below is a street view looking west across E. Lincolnway towards Fitness One.



PROPERTY TRANSACTION HISTORY

The subject property is owned by City of Cheyenne City Clerk's Office. The city has owned the property for many years.

The city is considering a swap for this property. No sale price has been determined as this analysis will aid in those decisions.

LEGAL DESCRIPTION

Wynn Addition, Lot 1, Block 1

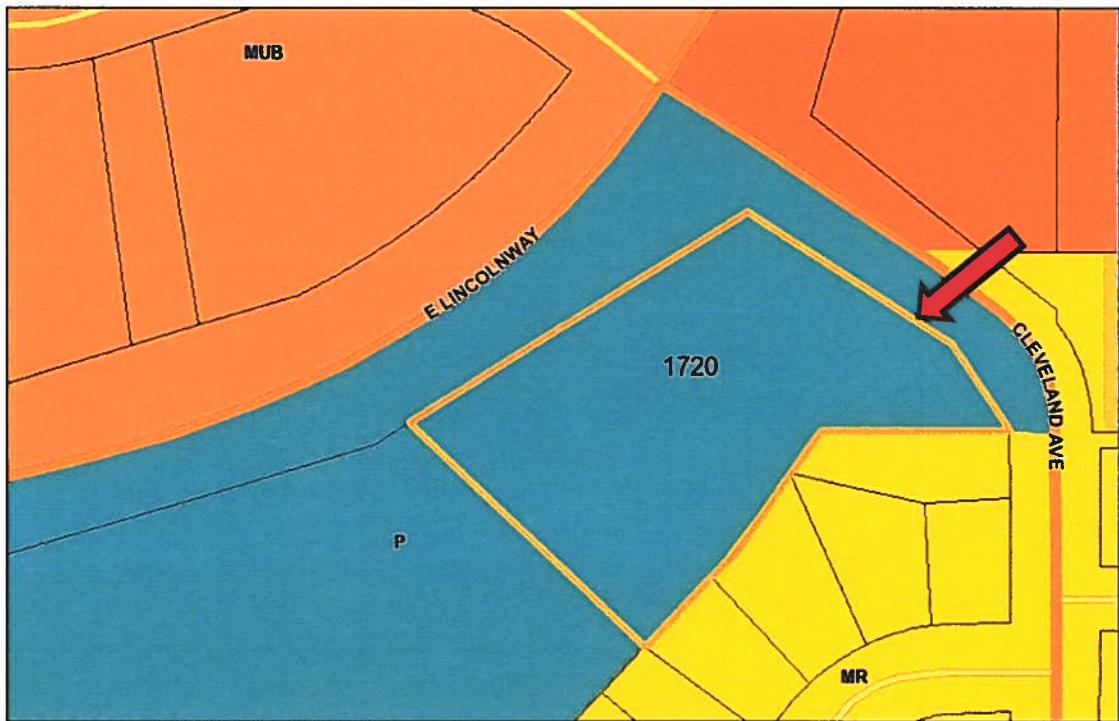
ASSESSMENT AND TAXES

Because the property is currently owned by the City of Cheyenne there is no tax assessment made or estimated.

DESCRIPTION OF THE SITE

<u>Existing Improvements:</u>	The site is improved with a fire station, driveways, parking, and landscaping. <u>These improvements are not considered in the appraisal.</u> The land is being appraised as if vacant and available for development. The offsites and frontages are assumed to be finished as they currently are, but no onsite improvements are considered.
<u>Size and Shape:</u>	The site is irregular in shape and totals 94,961 sf or 2.18 acres. We have relied on the county assessor's measurements. The site is about 530 feet diagonally from the southwest corner to the northeast corner and about 400 feet from the southeast corner to the northwest corner. The site has about 350 feet of frontage on Lincolnway.
<u>Access & Exposure:</u>	The subject is located just east of the intersection of College Drive and E. Lincolnway with good frontage on Lincolnway. Even if redeveloped, the parcel will not have a direct ingress/egress on Lincolnway. It will be on Cleveland Avenue. Access and exposure are both very good.
<u>Offsite Improvements:</u>	E. Lincolnway is a fully improved, 4-lane street plus a center turn lane. Cleveland Ave. is a fully improved street.
<u>Topography, Drainage and Soils:</u>	The subject lot has a slope down from the north east to the southwest, the total drop is about 20 feet.
<u>Flood Zone:</u>	The subject is not located in a flood zone.
<u>Easements or Encroachments:</u>	I am not aware of any encroachments, or easements that would have a negative effect on the value of the property.
<u>Environmental Concerns:</u>	Unless otherwise stated in this report, the existence of hazardous material, which may or may not be present on the property, was not observed by the appraiser. The adjoining property was said to have monitoring wells. The appraiser is not liable for environmental issues and the client is encouraged to consult with an expert in this field.
<u>Zoning Description:</u>	The subject property is located within the city limits and is zoned P, Public District. As of January 2022, the city planning department said they would likely allow the property to be rezoned to MUB or CB is desired. A future user would perhaps have flexibility in requesting a certain zone for their intended use. The city would be motivated to be amenable to reasonable uses because they want to dispose of the property.

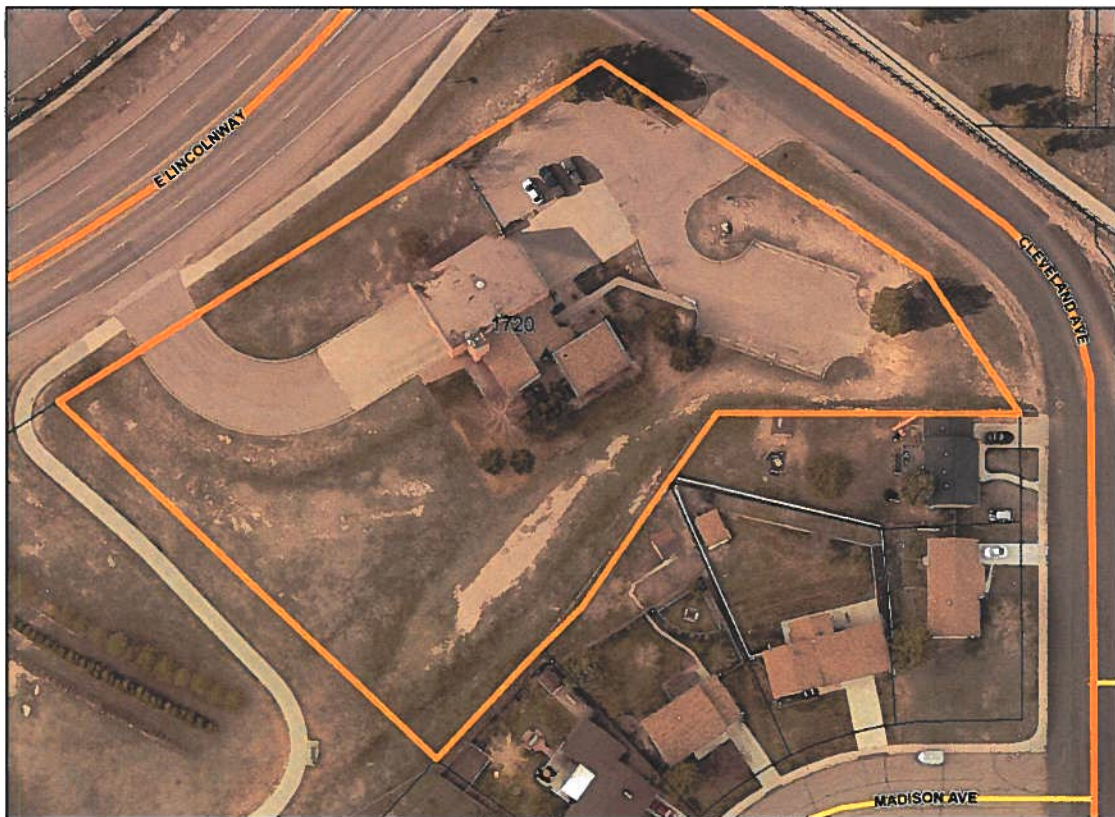
ZONING MAP



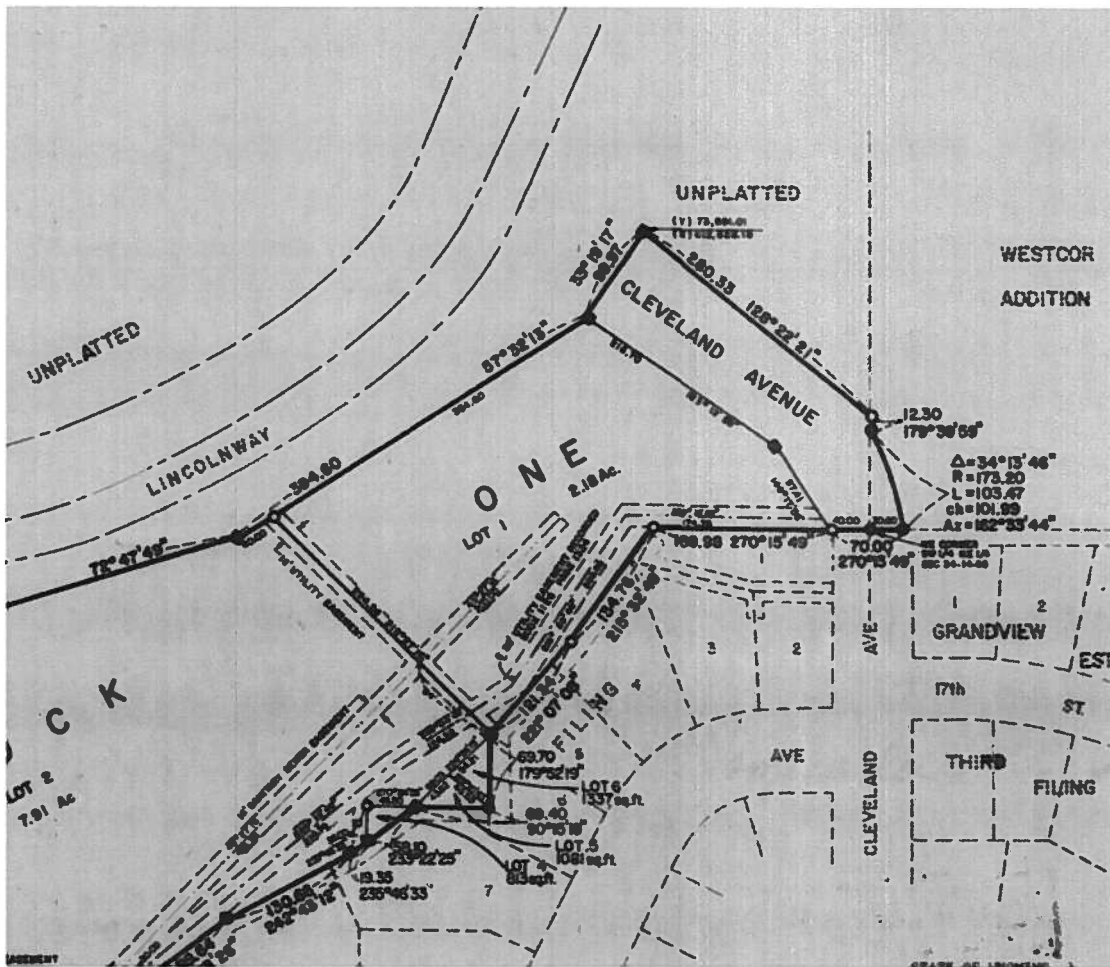
FLOOD MAP



AERIAL PHOTO



PORTION OF PLAT MAP



HIGHEST AND BEST USE

The highest and best use analysis is the fulcrum of the appraisal report. The conclusions of the highest and best use analysis determine which methods of valuation are considered appropriate and aid in the selection of comparable market data that can be used to value the property under appraisal. The highest and best use of a property provides the framework for the procedures used to estimate market value.

Highest and best use is defined as:

Highest and Best Use

The reasonably probable and legal use of vacant land or an improved property that is physically possible, appropriately supported, financially feasible, and that results in the highest value. The four criteria the highest and best use must meet are legal permissibility, physical possibility, financial feasibility, and maximum productivity. Alternatively, the probable use of land or improved property—specific with respect to the user and timing of the use—that is adequately supported and results in the highest present value. Source: Appraisal Institute, *The Dictionary of Real Estate Appraisal*, 5th ed. (Chicago: Appraisal Institute, 2010).

Market forces create value. It is important to note that the highest and best use of a property is not determined through subjective analysis by a property owner, a developer, or an appraiser. The highest and best use of a particular property is shaped by the competitive forces of the market in which the property is located. Therefore, the highest and best use of a property is an interpretation of the market forces that affect that property. The use that maximizes value represents the highest and best use.

The four criteria of legal permissibility, physical possibility, financial feasibility, and maximal productivity will be applied to the subject property. The criteria are generally considered in the order they have been listed; for it makes no difference that a use may be financially feasible if it is physically impossible or legally prohibited. The four criteria are discussed in further detail in the following paragraphs.

HIGHEST AND BEST USE

Legal Permissibility

This criterion determines which uses are legally permissible. Legal uses are controlled by such things as private restrictions, zoning ordinances, building codes, and/or environmental regulations. Private restrictions may prohibit certain uses or specify building requirements such as setbacks, heights, or materials. Zoning ordinances are restrictions on property use imposed by governmental agencies such as cities or counties. Building codes may impose restrictions on construction that result in higher or lower costs than normal for the area. Environmental regulations are typically governmental rules pertaining to clean air, clean water, and/or wetlands.

With regard to legal permissibility, the platted portion of the subject property is zoned P; Public, but if sold to a private owner it would be rezoned to Mixed-use or Community Business. These would allow a wide range of commercial and higher-density residential uses.

Physical Possibility

Physical possibility refers to the physical attributes of the property that would affect its suitability for a particular use. It takes into account such items as size and shape; area; terrain, topography and soils; accessibility; and/or the risk of natural disasters. Size and shape of the property affects its utility and may make the property particularly suitable or totally unsuitable for a particular use. Analysis of the area considers not only the geographic neighborhood, but also considers the availability and proximity of public utilities. Topography and sub-soil conditions may increase difficulty of development, increase its cost, or

even prohibit it. Accessibility refers to the adequacy of access for the proposed development. Risk of natural disasters is typically identified in the form of flood or earthquake zones, which may impose costly restrictions or even prevent building.

There are no physical impediments to development on the lots; the sloped topography is not severe and can be worked with. The utilities are readily available. Access is good along major corridors.

Financial Feasibility and Maximum Productivity

Many potential uses are eliminated with the test of legal permissibility and physical possibility. Of those uses that are left to consider, each can be evaluated as to whether or not a proposed use is likely to produce a return equal to or greater than the amount needed to cover operating expenses, financial obligations, capital amortization and satisfy the required rate of return on the investment. The required rate of return on a real estate investment must reflect the risk associated with the project when compared with other investment alternatives. Of those uses found to be legally permissible, physically possible, and financially feasible, the maximally productive use is that which produces the highest rate of return on the capital invested.

The land under appraisal is suitable for development and should be well received by the market. Many mixed-use lots in the area have sold for multifamily use in the last two years as the residential demand is very strong. Because of the strong exposure at a corner commercial uses are also well supported.

Conclusion of Highest and Best Use

Having addressed the four criteria of the highest and best use, it is my opinion that the highest and best use of the land is for rezoning to MU or CB zone and then development in conformance with the eventual zoning.

LAND VALUATION

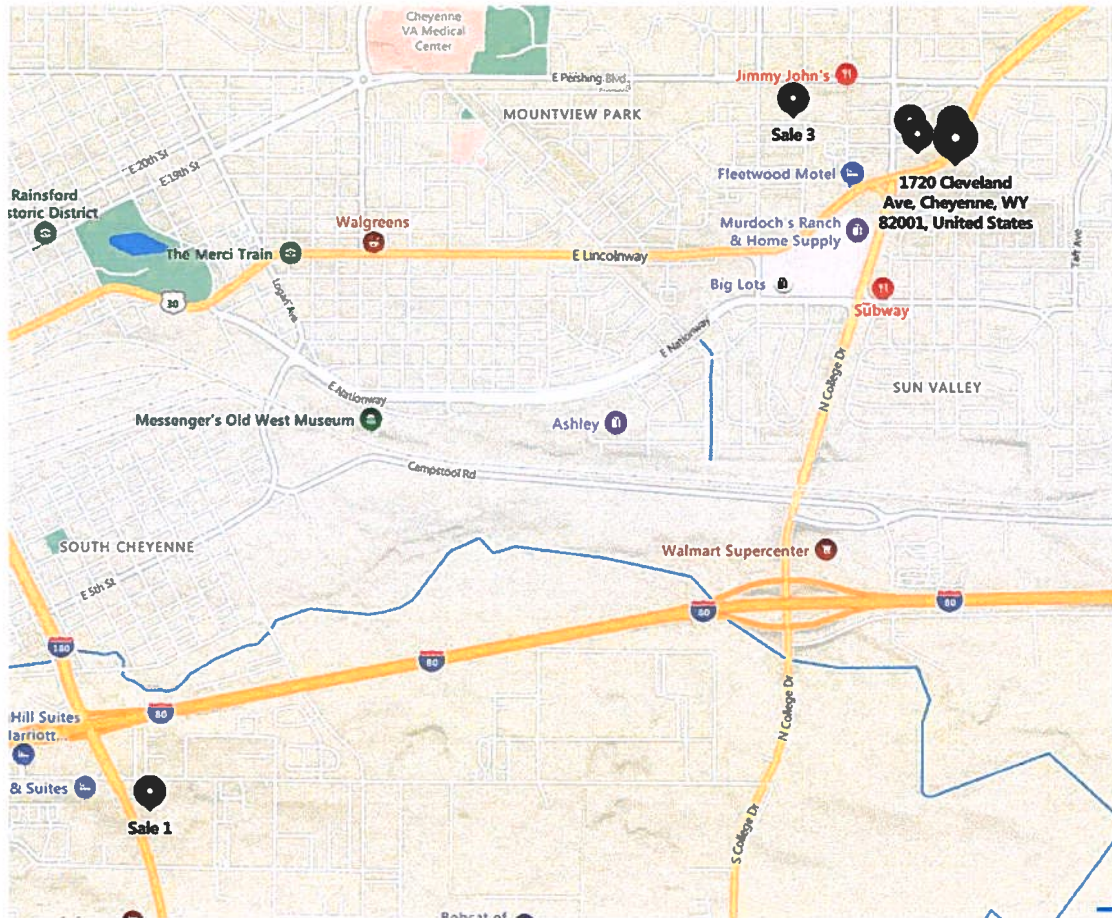
In light of its significance, land is often valued separately from any improvements. The resulting land value estimate may then be used as part of any of the three approaches in valuing the total improved value. The appraisal of land focuses on valuing the property rights that are attached to the land, such as the right to develop, occupy, lease, or farm it. Land is always valued as though vacant and available for development to its highest and best use.

The Sales Comparison Approach has been used to estimate the value of the subject land. On the following page is a chart entitled "Comparable Land Sales". I used the most comparable land sales I am aware of. I have compared the sales on a price per square foot basis.

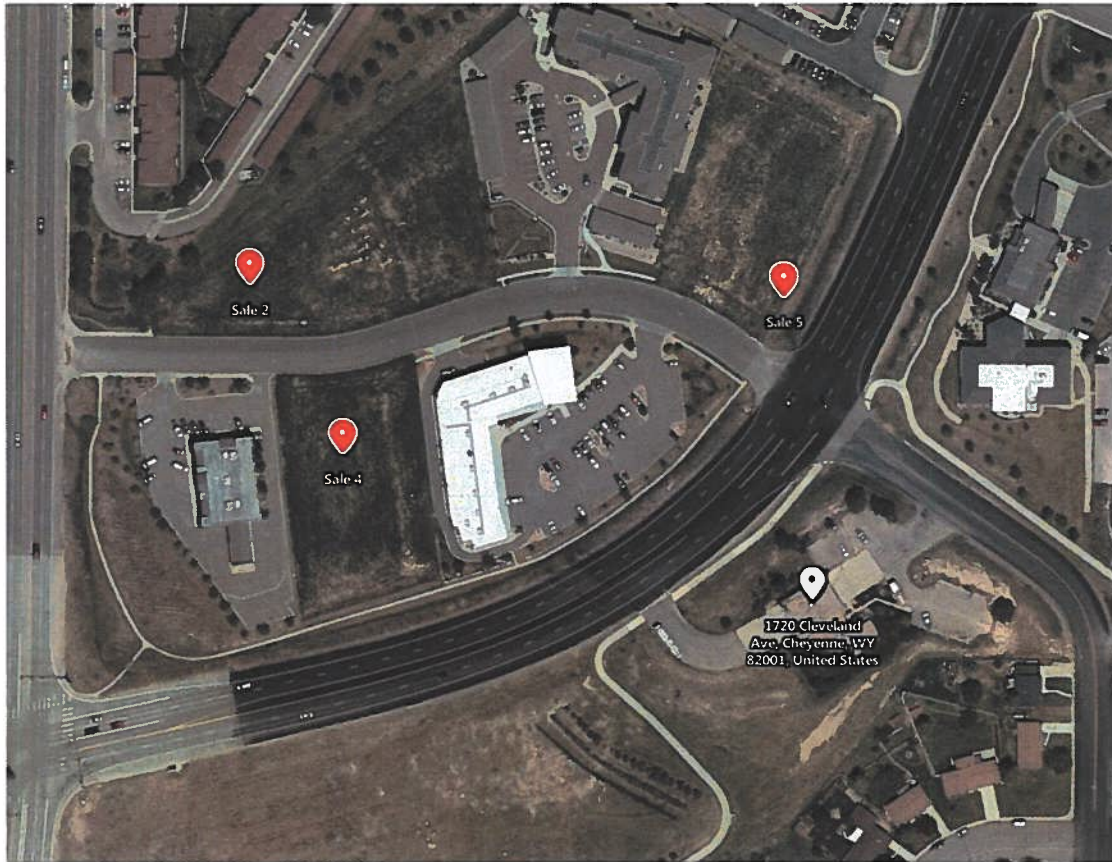
COMPARABLE LAND SALES

Sale #	Location	Sale Date	Sale Price	Size (SF)	Price Per SF	Comments
1	227 S. Greeley Hwy Black Cat Fireworks	4/30/22	\$435,000	126,324 2.90	\$3.44	Odd-shape lot with two frontages on SGH. 400' S of Fox Farm. Abandoned house and operating fireworks likely to be removed. Price reduced from \$527k and \$499k.
2	Greenway Street Crossroads Center B2 Lot 1 and Portion Lot 2	11/30/21	\$379,000	77,921 1.79	\$4.86	MUB lot near major intersection. Triangle. Gentle slope. 4 Fourplexes with garages. One lot; not sold solo. Listed 2018 for \$435,600.
3	Pershing Blvd Holmes Comer Lot 4 & 5, Block 1	5/14/21	\$583,335	116,667 2.68	\$5.00	MUB land, interior of new commercial park. Level. Near new retail and old mobile homes.
4	Greenway Street Crossroads Center B1 Lot 2 + 41' Lot 3	11/5/21	\$350,000	47,916 1.10	\$7.30	MUB lot near major intersection. Between bank and gym. Approved for multifamily, 27 units. Rectangular and level. Cowboy Ventures
5	4120 Greenway Street NWC with Lincoln way Crossroads Center 3rd F, L1, B1	6/11/21	\$399,500	49,223 1.13	\$8.12	Built to Dollar General. Level, rectangular corner lot along East Lincolnway. Zoned MUB.

COMPARABLE SALES MAP
ALL



**COMPARABLE SALES MAP
SUBJECT AND GREENWAY STREET**



Discussion of Adjustments

An adjustment grid has been used to quantify the differences between the comparable sales and the subject property. On the following page is a chart that summarizes the adjustments made to the comparable sales on a price per square foot basis. The adjustment process begins with the unadjusted sale price of the comparable sales. The sale price is then typically adjusted for property rights conveyed. Succeeding adjustments are applied to each previously adjusted price for financing, sale conditions, and market conditions. It is not necessary to apply the adjustments for location or exposure characteristics in any sequence. Therefore, these adjustments have been grouped together. When considering potential adjustments, comparable sales are traditionally adjusted to the subject property. Thus, a downward adjustment means that the comparable is superior to the subject in a particular aspect and the comparable sale, on a price per square foot basis, requires a downward adjustment for this factor to arrive at a value indication for the subject property.

Adjustments have been considered for various characteristics including the following:

- Property Rights Conveyed
- Financing
- Conditions of Sale
- Market Conditions / Time
- Location / Exposure / Access
- Easements, Shape Flood, Topo
- Parcel Size
- Other

The subject is being valued as vacant. The comparable land sales are considered as vacant and buildable. If the land sales required demolition, the cost of demolition is included in the sale price or as an adjustment, because it was required to get to the raw land.

Property Rights Conveyed: The first adjustment made to each sale is for the property rights conveyed. This adjustment takes into consideration differences in the legal estate between the subject and the comparable sales. No adjustments have been made.

Financing: The definition of market value used in this appraisal states that the value is to be in terms equivalent to cash. In effect, this means that each sale must be adjusted to reflect a purchase price in terms of cash or its equivalent. For the purposes of this appraisal, cash equivalency means that each sale has been adjusted to reflect financing rates, terms, or conditions that were readily available in the open market at the time each sale occurred. I am not aware of any needed adjustments.

Conditions of Sale: A conditions of sale adjustment is made for any unusual motivation or unusual conditions affecting the sale price.

Sale 1 had an old fireworks stand and an old house on the property. These would need to be removed in order to achieve the highest and best use of commercial or mixed-use redevelopment. The demolition costs are not known, but may be \$50,000 or more. I have adjusted upward 12% to arrive at the cost of a clear site.

No other adjustments are needed.

Market Conditions: Market conditions for development land strengthened through the pandemic. The inflation has further contributed. Land sales are idiosyncratic so hard to compare inflation directly in a small town. Houses are better tracked and a much larger sample size. MLS shows appreciation of residential homes at over 10% for the year from Q1 2021 to Q1 2022. The appreciation seems to have slowed significantly in Q2 2022 as interest rates increased sharply. I have applied a 5% annual adjustment.

Location/Exposure/Access: Location adjustments are quite subjective. Furthermore, location and exposure preferences would vary between potential users. Although there is a margin of error associated with each adjustment, the overall effect of the adjustments is to narrow the range of indicated values.

Sale 1 is along South Greeley Highway, a similar corridor to Highway 30. It is south of a major I-80 interchange. The site has two frontages on the highway, but the bulk of the land is back away from the road. I have made a 5% upward adjustment.

Sale 2 is a corner lot, but with only slight exposure to College Drive. It is adjusted 5% upward.

Sale 3 is at the back of the Holmes Corner development and fronts Holmes Street. It has access to Pershing through the shared parking of the plaza. I have adjusted upward 5% for the inferior exposure.

Sale 4 is an interior lot across from the subject on Highway 30. It has exposure to the highway, but not direct access. I have adjusted upward 5%.

Sale 5 is diagonal from the subject at the same intersection. It is the most similar in access and exposure. It needs no net adjustment.

Easements, Shape, Flood, Topo, Zoning:

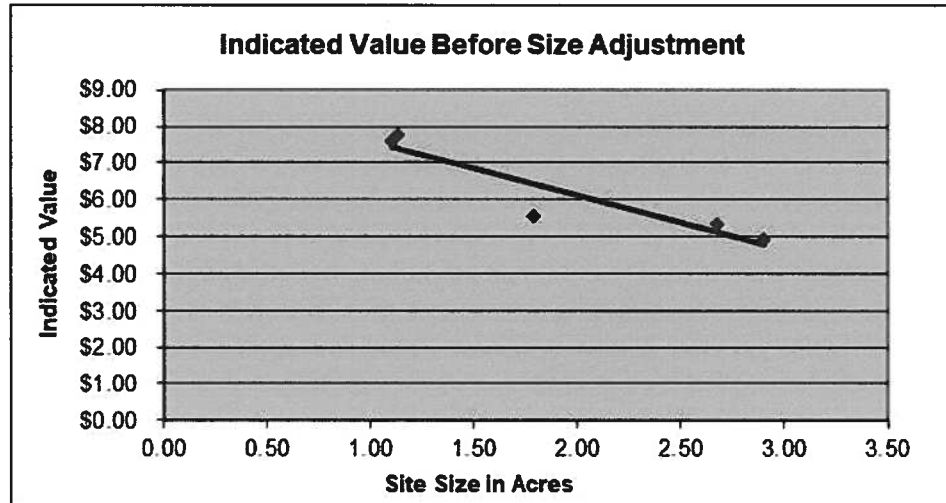
The subject has gentle topography along the entire site but it is not a significant slope anywhere. It is zoned Public but is assumed to be able to be zoned CB or MUB. The shape is irregular but does not result in much wasted space. It is not in a flood zone. Access and utilities are good and do not limit development of the site.

Sale 1 is zoned CB. It has an irregular shape that somewhat limits usability, importantly at the front of the site with the best exposure. There is significant topography that will require dirt work and probably large retaining walls. I have adjusted upward 20%.

Sale 3 is level and rectangular in shape. It is adjusted down 5%.

Sales 2, 4, and 5 are in the same business park and similar in many respects, so they are discussed together with conclusions given separately. The park is zoned MUB and allows for several commercial and some multifamily uses. The intent was for commercial, but because of the strong appreciation in multifamily, two of the lots sold for apartment development. Sale 2 is a triangle shape with slight topography and is the least usable. Sale 4 has slight topography but more level and a better shape than the subject. Sale 5 is level and rectangular in shape, making it the most appealing in these qualities. Sale 2 is adjusted upward 5%. Sale 4 is adjusted down 5%. Sale 5 is adjusted down 10%.

Parcel Size: Parcel size typically has a measurable effect on price per square foot. All other things being equal, smaller sites typically sell for higher prices on a per square foot basis. This relationship holds for this group, as shown below.



I have adjusted the sales at a rate of 30% of the percentage difference in size.

Other: The subject has no prepaid taps included in this scope of valuation and no other factors. There are no other unusual factors at the comparables that I am aware of that need further adjustment.

LAND ADJUSTMENT WORKSHEET

Item	Subject 1720 Cleveland Ave	1 227 S Greeley Hwy	2 Greenway Street Lot 1 & 2	3 Pershing Holmes Crnr Lots 4&5	4 Greenway Street B2 Lot 2&3	5 4120 Greenway Street
Date of Sale	As of 9/13/22	4/30/22	11/30/21	5/14/21	11/5/21	6/11/21
Physical Characteristics						
Parcel Size	94,961	126,324	77,921	116,667	47,916	49,223
	2.18	2.90	1.79	2.68	1.10	1.13
% Difference in Size		33%	-18%	23%	-50%	-48%
Comment	Corner	Shape/Topo	Triangle	Interior	Interior	Corner
Unadjusted Sale Price		\$435,000	\$379,000	\$583,335	\$350,000	\$399,500
Property Rights Adjustment		0.00%	0.00%	0.00%	0.00%	0.00%
Sale Price Adjusted For Property Rights		\$435,000	\$379,000	\$583,335	\$350,000	\$399,500
Financing Adjustment		0.00%	0.00%	0.00%	0.00%	0.00%
Sale Price Further Adjusted For Financing		\$435,000	\$379,000	\$583,335	\$350,000	\$399,500
Conditions Of Sale Adjustment		12.00%	0.00%	0.00%	0.00%	0.00%
Further Adjusted For Conditions of Sale		\$487,200	\$379,000	\$583,335	\$350,000	\$399,500
Market Conditions	5.0%	1.9%	3.9%	6.7%	4.3%	6.3%
Further Adjusted For Market Conditions		\$496,277	\$393,900	\$622,251	\$364,959	\$424,619
Parcel Size (Sq. Ft.)		126,324	77,921	116,667	47,916	49,223
Adjusted Price Per Square Foot		\$3.93	\$5.06	\$5.33	\$7.62	\$8.63
Location / Exposure / Access		5.0%	5.0%	5.0%	5.0%	0.0%
Easements, Shape, Flood, Topo, Zone		20.0%	5.0%	-5.0%	-5.0%	-10.0%
Parcel Size	30.0%	9.9%	-5.4%	6.9%	-14.9%	-14.4%
Other		0.0%	0.0%	0.0%	0.0%	0.0%
Net Adjustment		34.9%	4.6%	6.9%	-14.9%	-24.4%
Indicated Value of Subject Per SF		\$5.30	\$5.29	\$5.70	\$6.48	\$6.52
Average Indicated Value	\$5.86					
Gross Adjustment		49%	19%	24%	29%	31%

Reconciliation Land Value

The adjustments that have been made are subjective and are subject to a margin of error. However, the comparables brackets most of the subject site's major features. The cumulative effect of the adjustments is to narrow the range of values and, on the whole, provide a reasonably supported opinion of value. The indicated values are as follows. The sales have been arranged by indicated value, from lowest to highest.

<u>Sale #</u>	<u>Indicated Value</u>	<u>Gross Adjustment</u>
Sale 2	\$5.29	19%
Sale 1	\$5.30	49%
Sale 3	\$5.70	24%
Sale 4	\$6.48	29%
Sale 5	\$6.52	31%

All sales are meaningful indicators of value. The range is acceptable. There is unavoidable variation due to the idiosyncrasies of development land where parcels and uses vary widely. The indicated values range from \$5.29 per SF to \$6.52 per SF. The average of the sample is \$5.86 per SF. After considering the information, I estimate the value of the subject site at \$6.00 per SF. Multiplying by the total land size yields a value rounded to \$570,000.

Estimated Market Value, Fee Simple, As If Vacant Land**1720 Cleveland Avenue, Cheyenne, WY****2.18 Acres as of September 13, 2022****\$ 570,000**

CERTIFICATION

We certify that, to the best of my knowledge and belief:

1. the statements of fact contained in this report are true and correct.
2. the reported analyses, opinions, and conclusions are limited only by the reported assumptions and limiting conditions, and are my personal, impartial, and unbiased professional analyses, opinions, and conclusions.
3. We have no present or prospective interest in the property that is the subject of this report, and no personal interest with respect to the parties involved.
4. We have no bias with respect to the property that is the subject of this report or to the parties involved with this assignment.
5. Our engagement in this assignment was not contingent upon developing or reporting predetermined results.
6. Our compensation for completing this assignment is not contingent upon the development or reporting of a predetermined value or direction in value that favors the cause of the client, the amount of the value opinion, the attainment of a stipulated result, or the occurrence of a subsequent event directly related to the intended use of this appraisal.
7. This appraisal assignment was not based on a requested minimum valuation, a specific valuation, or the approval of a loan.
8. Our analyses, opinions and conclusions were developed, and this report has been prepared, in conformity with the Uniform Standards of Professional Appraisal Practice.
9. The reported analyses, opinions, and Value Indications were developed, and this report has been prepared, in conformity with the requirements of the Code of Professional Ethics and the Standards of Professional Practice of the Appraisal Institute.
10. The use of this report is subject to the requirements of the Appraisal Institute relating to review by its duly authorized representatives.
11. As of the date of this report, the appraiser has completed the Standards and Ethics Education Requirements for Candidates of the Appraisal Institute.
12. Per prior agreement with the clients, the appraiser did not make an inspection at the date of value. The appraiser has inspected the site in 2022 and viewed it many times.
13. The appraiser appraised the subject with a different scope of work in January 2022.
14. No one provided significant real property appraisal assistance to the persons signing this report.
15. We hereby acknowledge that we have the appropriate education and experience to complete the assignment in a competent manner. The reader is referred to the statement of qualifications in the Addenda. In addition, we are properly certified to prepare the appraisal. The reader is referred to the copy of the State of Wyoming Certified Real Estate Appraiser Board certificate in the Addenda.
16. I have never been publicly censured, suspended or expelled by an appraisal organization.



Daniel Holbrook
Senior Appraiser
Wyoming State Certified General Real Estate Appraiser #1447
dholbrook@bbgres.com

ADDENDA

Profile

Daniel is a Senior Appraiser at BBG. His experience includes valuation of subdivisions, hotels, single and multi-tenant retail properties, single and multi-tenant industrial properties, single and multi-tenant office properties, medical properties, specialty properties, and vacant land. Daniel has performed work in several states and sizes of markets. Daniel specialized geographically for many years, so addressed all property types that clients requested within the covered markets, leading to a wide array of experience and finding solutions when data is limited.

Daniel has worked closely with developers and investors, including participating in multifamily development projects when he was not involved as an appraiser. This experience helps him understand the perspectives of sponsors and lenders. Prior to joining BBG, Daniel ran an independent appraisal company for five years. He enjoys the sunshine in Florida and returning to his roots in the Rocky Mountains.

Professional Affiliations

State of Florida (Cert Gen RZ4075)
State of Colorado (CG.200002131)
State of Wyoming (AP-1447)
State of Nebraska (CG2018001R)
Appraisal Institute – Candidate for MAI Designation

Education

Brigham Young University – Provo, UT
BS - Major in Economics and Russian; Minor in Business Strategy; 2013

Coursework

- 15-Hour USPAP
- Basic Appraisal Principles, Appraisal I
- Basic Appraisal Procedures, Appraisal II
- General Appraiser Income Approach
- General Appraiser Sales Comparison Approach
- General Appraiser Market Analysis and Highest and Best Use
- General Appraiser Site Valuation & Cost Approach
- General Appraiser Report Writing and Case Studies
- Statistics, Modeling and Finance
- Appraisal Institute Report Writing
- Appraisal Review
- Market Analysis and Highest and Best Use
- Appraisal Institute Advanced Income Capitalization
- Appraisal Institute Quantitative Analysis
- Appraisal Institute Code of Professional Ethics
- Expert Witness for Commercial Appraisers



License Number AP-1447

NON TRANSFERABLE

CERTIFIED REAL ESTATE APPRAISER PERMIT

Issued : 01/30/2021

Expires: 01/29/2023

Daniel L. Holbrook

Certified General Appraiser Permit

AS PROVIDED FOR BY THE LAWS OF WYOMING.

Accuvalue, LLC
7915 Braehill Road
Cheyenne WY 82009

AUTHORIZED BY THE WYOMING CERTIFIED
REAL ESTATE APPRAISER BOARD
WITNESS MY HAND AND THE
OFFICIAL SEAL AT CHEYENNE, WYOMING.

A handwritten signature in black ink, appearing to read "Rosann R David".

Rosann R David Interim Executive Director





Cheyenne Fire & Rescue

Office: 415 W. 18th Street
Mailing Address: 2101 O'Neil Avenue
Cheyenne WY 82001
307-637-6311



MEMORANDUM

To: Mayor Patrick Collins, and City Council

Date: 10/4/2022

From: John Kopper
Fire Chief

Reference: Termination of Quit Claim Deed at 1720 Cleveland Ave (Fire Station #3)

1. In order to complete our transaction with US 30BP LLC for the trade of land we have to terminate a quit claim deed with the Wyoming Department of Transportation (WYDOT) for the property located at 1720 Cleveland Ave (Fire Station #3). As stipulated in the current deed, written consent and approval must be attained prior to the Grantee (City of Cheyenne) conveys the property.
2. The mayor and staff has worked with WYDOT and the Federal Highway Administration for termination and consent. Approval will be given at the next Commission Meeting on October 20, 2022.
3. To release the property, the City of Cheyenne shall pay the appraised value to WYDOT for the land only at 1720 Cleveland Ave (\$570,000.00).

Funding: 030-16-1640-41-43804 (2017 6th Penny Overage) \$5,683,685.00

Respectfully,

John Kopper
Fire Chief

Fire Chief John Kopper
jkopper@cheyennecity.org